Sample Letter to Postal Officials,
Office of Inspector General (OIG)
or Postal Inspection Service
Demanding Testimony from Stewards
(*Type this letter on the Union's Letterhead*)

Date of Letter:
Name (**Insert the Postal Official, Inspector or OIG Agent's name**):
Address (**Insert the Postal Official, Inspector or OIG Agent's address):**
City, State, and Zip Code (**Insert the Postal Official, Inspector or OIG Agent's city, state, and zip code).**

Dear (**Insert the Postal Official, Inspector or OIG Agent's name**):

I am writing in response to your request that I provide you a formal statement concerning the actions of **insert the grievant's name**, who is the subject of a removal action by the United States Postal Service.

Because the information you are seeking was obtained by me in the course of the performance of my duties as a Union steward, I consulted a National Officer of the American Postal Workers Union, AFL-CIO concerning my responsibilities. I have been advised by APWU and by the National Union's General Counsel's Office that I may not lawfully be asked to disclose information obtained by me in the course of my performance of my duties as a steward.

Under decisions of the National Labor Relations Board, Particularly Cook Paint & Varnish Co., 258 NLRB 1230 (1981), stewards may not lawfully be asked by employers to give testimony against individuals based upon information obtained by stewards in the performance of their duties as stewards.

Accordingly, I respectfully refuse to provide you the evidence you are seeking against the grievant, as it would be inappropriate for me to provide you a statement in this matter.

Sincerely,

Print Steward's Name and Title
Sign Steward's Name
Include Steward's Tour

Special Note: *Send this letter by certified mail, return receipt requested. Keep a copy for your file and forward a copy to the Director of Industrial Relations, APWU, AFL-CIO, at 1300 L Street, N.W., Washington, D.C., 20005.*